

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF DANKOVSKAYA AND OTHERS v. RUSSIA

(Applications nos. 13238/21 and 18 others –
see appended list)

JUDGMENT

STRASBOURG

14 March 2024

This judgment is final but it may be subject to editorial revision.



In the case of Dankovskaya and Others v. Russia,

The European Court of Human Rights (Second Section), sitting as a Committee composed of:

Lorraine Schembri Orland*, President*,
Frédéric Krenc,
Davor Derenčinović*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 15 February 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offence. They relied, expressly or in substance, on Article 11 of the Convention. Some applicants also invoked Article 10, however, this complaint falls to be examined under Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of

public assemblies; and *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (the CAO).

V. REMAINING COMPLAINTS

14. Some applicants raised additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative offence proceedings. In view of the findings in paragraphs 11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to the facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *decides* that it is not necessary to examine the other aspects of the complaints raised by some applicants under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 14 March 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lorraine Schembri Orland President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	13238/21 01/03/2021	**Angela Nikolayevna DANKOVSKAYA** 1973	Ushakov Timofey Borisovich Kokoshkino	Opposition rally Moscow 22/06/2020	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 26/10/2020	Art. 5 (1) - unlawful detention- arrest, escorting to a police station, detention on 22/06/2020 for the sole purpose of drawing up a record of administrative offence (such record only drawn up on 06/07/2020); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
2.	15097/21 24/02/2021	**Damir Shamilevich DAVLETBAYEV** 1992	Memorial Human Rights Centre Moscow	Rally against the Constitutional amendments Moscow 15/07/2020	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 26/11/2020	Art. 5 (1) - unlawful detention - arrest, escorting to a police station, detention on 15/07/2020 for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
3.	15104/21 25/02/2021	**Grigoriy Aleksandrovich GRIBENKO** 1989	Ivanets Vyacheslav Sergeyevich Tbilisi, Georgia	Opposition rally Irkutsk 01/08/2020	article 20.2 § 2 of CAO	fine of RUB 20 000	Irkutsk Regional Court 27/10/2020	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

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4.	20155/21 23/03/2021	**Sergey Alekseyevich PAVLOV** 1998	Memorial Human Rights Centre Moscow	Rally against the constitutional amendments Moscow 15/07/2020	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 26/10/2020	Art. 5 (1) - unlawful detention – arrest, escorting to a police station, detention on 15/07/2020 for the sole purpose of drawing a record of administrative offence	4,000
5.	20303/21 14/03/2021	**Ivan Igorevich SHCHEPIN** 1990	Vasin Vladimir Valeryevich Krasnoyarsk	Rally in support of S. Furgal Krasnoyarsk 08/08/2020	article 20.2 § 2 of CAO	fine of RUB 20,000	Krasnoyarsk Regional Court 24/09/2020	Art. 5 (1) - unlawful detention - arrest, escorting to a police station, detention between 08/08/2020 and 10/08/2020 as administrative suspect, pending trial, after the offence record had been complied on 08/08/2020; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
6.	20406/21 26/03/2021	**Larisa Sergeyevna TOLMACHEVA** 1962	Vasin Vladimir Valeryevich Krasnoyarsk	Opposition rally Krasnoyarsk 15/08/2020	article 20.2 § 2 of CAO	fine of RUB 20,000	Krasnoyarsk Regional Court 01/10/2020	Art. 5 (1) - unlawful detention - arrest, escorting to a police station, detention on 15/08/2020, for the sole purpose of drawing up a record of an administrative offence (such record drawn up on 17/08/2020); failure to draw up records of administrative arrest and escorting; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
7.	20652/21 20/03/2021	**Darya Sergeyevna MERNENKO** 2000	Peredruk Aleksandr Dmitriyevich St Petersburg	Event against the increase of public transportation tariffs St-Petersburg 19/11/2019	article 20.2 § 2 of CAO	fine of RUB 20,000	Saint Petersburg City Court 06/10/2020	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
8.	20669/21 25/03/2021	**Shamil Azatovich ALIAKBEROV** 2002	Memorial Human Rights Centre Moscow	Rally against the constitutional amendments Moscow 15/07/2020	article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 26/10/2020	Art. 5 (1) - unlawful detention - arrest, escorting to a police station, detention on 15/07/2020 for the sole purpose of drawing up a record of administrative offence (such record compiled only on 20/07/2020); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
9.	20775/21 22/03/2021	**Aleksandr Sergeyevich KHALAYEV** 1979	Zubarev Dmitriy Vladimirovich Vladivostok	Rally in support of S. Furgal Vladivostok 19/07/2020	article 20.2 § 5 of CAO	fine of RUB 5,000	Primorye Regional Court 13/10/2020	Art. 5 (1) - unlawful detention - arrest, escorting to a police station, detention on 19/07/2020 for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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10.	20778/21 22/03/2021	**Anastasiya Yuryevna KAPITONOVA** 1998	Zubarev Dmitriy Vladimirovich Vladivostok	Rally in support of S. Furgal Vladivostok 08/08/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	Primorye Regional Court 03/11/2020	Art. 5 (1) - unlawful detention - arrest, escorting to a police station, detention on 08/08/2020 for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
11.	21351/21 06/04/2021	**Andrey Eduardovich MAKSIMKIN** 1993	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally in support of A. Navalnyy Saransk 23/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Supreme Court of the Mordovia Republic 10/03/2021	Art. 5 (1) - unlawful detention - arrest, escorting to a police station, detention on 23/01/2021 for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
12.	21567/21 08/04/2021	**Aleksey Vladimirovich LITVINENKO** 1962	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally for fair elections to Mosgorduma Moscow 03/08/2019	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 20/01/2021	Art. 5 (1) - unlawful detention - arrest, escorting to a police station, detention on 03/08/2019, for the purpose of drawing up an offence record (such record only drawn up on 06/08/2019)	4,000
13.	21988/21 07/04/2021	**Aleksandr Sergeyevich SEMCHENKOV** 1987	Memorial Human Rights Centre Moscow	Rally in support of arrested N. Platoshkin and S. Furgal Moscow 25/07/2020	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 18/01/2021	Art. 5 (1) - unlawful detention - arrest and escorting to a police station, detention on 25/07/2020 for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
14.	22672/21 29/03/2021	**Bilyal Pavlovich KOTKIN** 1981	Memorial Human Rights Centre Moscow	Rally for fair elections to Mosgorduma Moscow 27/07/2019	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 02/10/2020	Art. 5 (1) - unlawful detention - arrest, escorting to a police station, detention on 27/07/2019 for the sole purpose of drawing up a record of administrative offence	4,000
15.	24176/21 16/04/2021	**Mikhail Sergeyevich REVYAKIN** 1994	Memorial Human Rights Centre Moscow	Rally in support of S. Furgal Khabarovsk 19/12/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	Khabarovsk Regional Court 28/01/2021		3,500
16.	24727/21 29/03/2021	**Ilya Sergeyevich FROLOV** 1992	Bayeva Aleksandra Nikolayevna Moscow	Rally in support of A. Navalnyy Volgograd 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 25/02/2021	Art. 5 (1) - unlawful detention - arrest, escorting to a police station and detention on 23/01/2021 for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
17.	25898/21 07/05/2021	**Anton Yuryevich ZHIVIN** 1990	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally in support of A. Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 10 days	Moscow City Court 05/02/2021	Art. 5 (1) - unlawful detention - arrest, escorting to a police station and detention between 31/01/2021 and 01/02/2021 as administrative suspect, pending trial, after the offence record had been compiled; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000

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18.	25930/21 07/05/2021	**Denis Vladimirovich TKHAROVSKIY** 1987	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally in support of A. Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 15 days	Moscow City Court 05/02/2021	Art. 5 (1) - unlawful detention - arrest, escorting to a police station and detention between 31/01/2021 and 01/02/2021 as administrative suspect, pending trial, after the offence record had been compiled; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
19.	39838/21 29/07/2021	**Aleksandr Yevgenyevich YANIN** 1989	Eysmont Mariya Olegovna Moscow	Rally in support of A. Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 10 days	Moscow City Court 05/02/2021	Art. 5 (1) - unlawful detention - arrest; escorting to a police station, detention between 31/01/2021 and 01/02/2021 as administrative suspect, pending trial, after the offence record had been compiled; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000

[1] Plus any tax that may be chargeable to the applicants.